ORDINANCE NO. 436
OF THE
CITY OF RECTOR

WHEREAS, following public meeting of the Rector Planning and Zoning Commission concerning the placement of manufactured housing in Rector's Medium Density Residential (R1) neighborhoods, and Housing Density Residential (R-2) said commission has recommended that Ordinance Numbers 359 and 372 be amended to provide for placement of manufactured homes on individual private lots providing conditions contained in this ordinance are met.

SECTION 1. (INTENT) The Rector, Arkansas, City Council finds that manufactured housing offers the citizens of the City of Rector an additional opportunity to own and live in decent, safe, and affordable housing on a permanent basis.

It is the intent of this ordinance to allow the placement of manufactured homes, on a permanent foundation system in areas zoned Medium Density Residential (R1), provided that the homes meet appearance and dimensional criteria which will protect the character and property values of those single-family residential areas. The intent of this ordinance is to increase housing opportunities in Rector.

SECTION 2. (DEFINITION) Manufactured homes means a dwelling unit manufactured in accordance with the provisions set forth in 24CFR part 3280-Manufactured Home Construction and Safety Standards as amended October 25, 1994, and installed in accordance with applicable state regulations.

SECTION 3. ( PERMITTED PLACEMENT) Manufactured homes placed in a Medium Density Residential (R1) area shall contain multiple sections requiring assembly at the construction site, will have minimum width of 24 feet, contain 1250 square feet or more of living space, and be of new construction. Units shall be configured to conform to the general or predominant orientation, size, outward appearance, exterior siding material, roof pitch, installed on a permanent brick and mortar foundation with landscaping provisions consistent with the residential neighborhood characteristics, and subject to compliance with the regulation of the Arkansas Manufacture Home Commission and the U. S. Department of Housing and Urban Development.

Installation or placement of manufactured homes may be prohibited by restrictive convenant in certain subdivisions. For issuance of a building permit for the placement of a manufactured home in Medium Density Residential (R1) area, the manufactured home owner and/or renter shall have written approval of 60% of the land owners who own land within 200 feet of the property edge containing the proposed manufactured home. It is further required that the manufactured home owner and/or renter shall have written approval of 100% of the land owners who own land adjoining the property edge containing the proposed manufactured home.

New Manufactured Housing in areas designated, High Density Resdential (R-2), by the City's Official Zoning Map will be regulated by the Zoning Ordinance's current guidelines for site-built homes, used manufactured housing in areas designated, High Density Residential (R-2), by the City's Official Zoning Map shall be regulated by the Zoning Ordinance's current guidelines for mobile homes.

SECTION 4. (PERMITS) All applicable permits otherwise required for a single family residential unit shall also be required for manufactured home.

SECTION 5. (EMERGENCY CLAUSE) Because of immediate need to provide definition and permitted used for manufactured homes in the City of Rector, an emergency is declared to exist and the Ordinance shall be in force and effect as of the date of its passage and first publication.

Passed this 2 day of December 1996.

Mayor

Attest:

Kenneth R Burns

City Recorder